

**MEMORANDUM OF UNDERSTANDING  
BETWEEN YUBA COUNTY SHERIFF AND  
THREE RIVERS LEVEE IMPROVEMENT  
AUTHORITY**

THIS MEMORANDUM OF UNDERSTANDING “MOU” is hereby made by and between the YUBA COUNTY SHERIFF’S DEPARTMENT (“SHERIFF”) and the THREE RIVERS LEVEE IMPROVEMENT AUTHORITY (“TRLIA”), a Joint Power Authority between the County of Yuba and Reclamation District 784.

In consideration of the Services to be rendered, the sums to be paid, and each and every covenant and condition contained herein, the parties hereto agree as follows:

**RECITALS**

**WHEREAS**, TRLIA has a need for security technology to support law enforcement and emergency operations in the Feather River Setback Area, through coordination with Yuba County Sheriff; and

**WHEREAS**, SHERIFF has an existing agreement with Flock Group Inc. for the provision of Flock Advanced Operating System “FLOCK” which includes surveillance cameras and software; and

**WHEREAS**, TRLIA has agreed to reimburse the SHERIFF for the one-time implementation cost and two (2) years of subscription costs for three (3) cameras. Cameras are to be placed around the Feather River Setback Area in designated areas as determined by the SHERIFF and agreed upon by TRLIA.

**NOW THEREFORE, THE PARTIES AGREE AS FOLLOWS:**

1. **TERM.** This Agreement shall apply to the period of June 3, 2025, and remain in full force and effect until terminated pursuant to Section 7 of this Agreement or termination of the Flock Group Inc. between the SHERIFF and Flock Group Inc.
2. **DESIGNATED REPRESENTATIVE.** The Yuba County Sheriff-Coroner located at 720 Yuba St, Marysville, CA 95901, is the representative for the SHERIFF and will administer this MOU. Executive Director, Kevin Mallen, located at 915 8<sup>th</sup> Street, Suite 115, Marysville, CA 95901, is the authorized representative for TRLIA. Changes in designated representatives shall occur only in advance written notice to the other party.
3. **PURPOSE.** The purpose of this Agreement is to establish the responsibilities and actions required by TRLIA and SHERIFF as it relates to SHERIFF providing service and use of an existing contract to TRLIA, between SHERIFF and Flock Group Inc.
4. **SCOPE OF SERVICES.** SHERIFF shall enter into an agreement with FLOCK provided herein.

- 4.1. The SHERIFF shall execute an agreement with FLOCK to provide the following software and services to TRLIA:
  - 4.1.1. Installation of Three (3) Solar Multi-Purpose LPR and Video Fixed Cameras
  - 4.1.2. Installation of above software.
  - 4.1.3. Annual Support and Updates of the above software.
  - 4.1.4. Repairs and Replacement of above cameras as needed.
- 4.2. The TRLIA shall reimburse the SHERIFF under Section 5 of this agreement.

## 5. FISCAL PROVISIONS

5.1. TRLIA agrees to reimburse the SHERIFF for the payment of TRLIA's Solar Multi-purpose LPR and Video Fixed Cameras, Installation, and Annual Support in the First Year in the amount of Sixteen Thousand, Six Hundred Thirty-Eight Dollars and no cents (\$16,638).

5.2. After the First Year, TRLIA agrees to reimburse the SHERIFF annually for the Annual Support in the amount of Fourteen Thousand One Hundred Dollars and no cents (\$14,100) based on proposal received on May 28, 2025, unless amended in writing thereafter. For subsequent years of the contract, the reimbursement amount to the SHERIFF For subsequent years of the contract, the reimbursement amount to the Sheriff is subject to any actual cost increases associated with TRLIA cameras. Billing will be based on documented vendor charges and provided to TRLIA with supporting documentation within 30 days of receipt of increase.

5.3. SHERIFF shall notify TRLIA regarding any increases during the term as required by Flock Group Inc. TRLIA shall pay the additional increase within 60 days of being notified. Both parties agree if the system suffers an outage; neither will be entitled to compensation.

5.4. TRLIA shall be responsible for any additional costs associated with the implementation of Solar Multi-purpose LPR and Video Fixed Cameras, including but not limited to hardware, network infrastructure, maintenance, or other related expenses necessary for successful deployment and operation. Additional costs associated with the implementation shall be discussed with TRLIA, and agreed upon, prior to authorization of work.

5.5. SHERIFF will direct bill TRLIA for reimbursement through preparation and submission of a journal that includes charges and appropriate backup documentation annually.

## 6. GENERAL PROVISIONS

6.1. **AGREEMENTS.** This MOU constitutes the entire Agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements and understandings of the parties with respect to the subject matter of this MOU.

6.2. **MODIFICATION.** No modification or waiver of any provision of this MOU or its attachments shall be effective unless such waiver or modification shall be in writing, signed by all parties, and then shall be effective only for the period and on the condition, and for the specific instance for which given.

**6.3. ENTIRE AGREEMENT.** This MOU represents the entire understanding of the parties as to those matters contained herein. No prior oral or written understanding shall be of any force or effect with respect to those matters covered hereunder. This MOU may only be modified by a written amendment duly executed by the parties.

- 7. TERMINATION.** This MOU may be terminated by any party, with or without cause as follows: by mutual consent of the parties; or by either party upon no less than thirty (30) days prior written notice to the other party.
- 8. NOTICES.** All notices and demands of any kind which either party may require or desire to serve on the other in connection with this MOU must be served in writing either by personal service or by registered or certified mail, return receipt requested, and shall be deposited in the United States Mail, with postage thereon fully prepaid, and addressed to the party so to be served and addressed as follows.

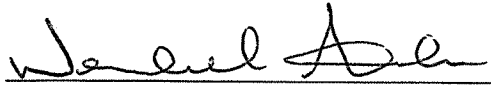
SHERIFF: County of Yuba  
Attn: Sheriff  
720 Yuba Street  
Marysville, CA 95901

With a copy to: County Counsel  
County of Yuba  
915 8<sup>th</sup> Street, Suite 111  
Marysville, CA 95901

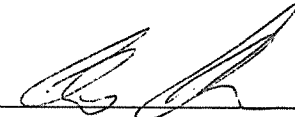
TRLIA: Three Rivers Levee Improvement Authority  
Attn: Executive Director  
915 8<sup>th</sup> Street, Suite 115  
Marysville, CA 95901

**IN WITNESS WHEREOF**, the parties hereto have executed this Memorandum of Understanding on June 5, 2025:

“SHERIFF”  
Yuba County Sheriff’s Department

  
Wendell Anderson,  
Sheriff

“TRLIA”  
Three Rivers Levee Improvement Authority

  
Kevin Mallen,  
Executive Director

APPROVED AS TO FORM:

  
Janet E. Bender,  
County Counsel and TRLIA General Counsel